

Malaysia

Malaysia Competition Commission

The Malaysia Competition Commission ('MyCC') is an independent statutory body entrusted with enforcing competition law in Malaysia, particularly through the Competition Act 2010 ('Act 712') and the Competition Commission Act 2010 ('Act 713'). Since its establishment in June 2011, MyCC has taken decisive enforcement action against more than 270 companies for anti-competitive conduct such as cartel agreements and abuses of dominant position. These actions have resulted in cumulative financial penalties exceeding RM664 million, underscoring MyCC's commitment to upholding competitive markets in Malaysia. As the key regulator of competition in the country, MyCC's role goes beyond enforcement. It plays a central part in advocating for a culture of competition that supports innovation and protects consumer welfare. While enforcement ensures compliance it is through advocacy that strengthens awareness and institutional understanding. In this dual role, MyCC also undertakes market studies aimed at generating data-driven figures and providing policy advice on competition related matters. These studies have become vital tools in identifying structural and behavioral market issues and proposing reform measures.

On 1 April 2025, MyCC marked its 14th anniversary, a milestone that reflects not only its longevity but also its adaptability to a rapidly changing economic and technological landscape. The nature of anti-competitive conduct has become increasingly sophisticated, especially in the context of the digital economy. Recognizing this trend, MyCC has implemented several strategic initiatives to modernize its enforcement capabilities and remain responsive to new forms of market misconduct.

As we continue to evolve and expand, so does our need to strengthen our digital capabilities. MyCC now investigates cases across multiple areas, and as the digital era expands, our enforcement efforts must increasingly incorporate digital elements.

With the growing reliance on digital tools, our cases are becoming increasingly complex. In the earlier days, when our team was smaller, we depended on specific software such as EnCase, Nuix and others to support our work.

As institutional capacity expanded, investments were made to train and upskill enforcement officers, culminating in the creation of a Digital Forensics Unit under the Investigation and Enforcement Division. Today, one of MyCC's officers is

certified to produce professional-level digital forensic reports and serves as an internal expert, having received specialized training from international practitioners. His expertise has significantly enhanced the Commission's ability to handle complex digital investigations.

Recognizing the importance of knowledge retention and continuity, MyCC also developed a comprehensive Knowledge Management System ('KMS'), which serves as a centralized repository for institutional memory. The KMS is structured around three core areas: the digital library, data management and enforcement systems. The library supports digital knowledge preservation and is stocked with authoritative and up-to-date texts on competition law and economics. MyCC ensures it acquires newly released materials to help officers stay informed of global developments in the field. The high rate of book loans among staff reflects the organization's culture of continuous learning and professional development.

The data management function of the KMS plays a crucial role in compiling both historical and current datasets derived from over a decade of MyCC's research, investigations and capacity-building engagements. This includes published reports, internal notes, minutes from meetings and knowledge gained from international training programs. Information that was once scattered across divisions is now centralized and easily accessible. The third element which is the Investigation and Enforcement Database, which was established to digitize and systematize the entire enforcement process, from pre-investigation to case closure. This digital workflow allows for better organization, faster access to information and greater consistency in enforcement procedures, ultimately enhancing MyCC's operational efficiency.

Together, these institutional advancements reflect MyCC's broader digital transformation and commitment to excellence. Digital tools are no longer optional as they are essential components of any modern competition authority. At the core of these tools are knowledge and data which are the true drivers of long-term success. At MyCC, these capabilities have already accelerated case resolution and strengthened enforcement outcomes. With more than 270 enterprises held accountable, over 15 active investigations ongoing and hundreds of complaints being assessed, MyCC continues to demonstrate its dedication to robust, data-driven enforcement in support of healthy competition across all sectors of the Malaysian economy.